

IN THE SMALL CLAIMS COURT OF Marion COUNTY, INDIANA

Circle City Rentals, LLC

, Plaintiff,

vs.

John Doe

, Defendant.

Case No.:

49D01-2405-SC-012345

Division (if
shown):

DEFENDANT'S MOTION FOR CONTINUANCE

COMES NOW, John Doe, Defendant in the above-styled matter, and respectfully moves this Court for a continuance of the hearing currently scheduled in this eviction proceeding, and in support thereof states as follows:

1. The Defendant is John Doe, residing at 3125 E Washington Street, Indianapolis, IN, 46201. The Defendant is the tenant in an eviction action brought by Plaintiff Circle City Rentals, LLC.

2. A hearing in this matter is currently scheduled for the following date and time:

Hearing date:

05/08/2024

Hearing time:

3. The Defendant respectfully requests a continuance of the scheduled hearing for the following reasons: I need additional time to obtain repair receipts and bank statements for the hearing..

4. The Defendant needs additional time to: (check all that apply)

- ☐ Secure legal representation or consult with an attorney
- ☐ Gather necessary documents and evidence to present to the Court
- ☐ Arrange for funds to pay the amount owed or negotiate a payment arrangement
- ☐ Address personal or family circumstances that prevent readiness for the hearing

☐ Other:

5. The Defendant is not seeking this continuance for purposes of delay or to prejudice the Plaintiff, but rather to ensure adequate time to prepare a proper response and defense to the eviction action and to address the circumstances giving rise to this matter.

6. The Defendant respectfully requests that this Court grant a continuance to a date a specified number of days from the current hearing date, or to such other date as the Court deems appropriate:

Number of days requested:

7. The Defendant has attempted to notify the Plaintiff or Plaintiff's counsel of this motion by (email, mail, or hand delivery):

Delivery method:

Date:

The Plaintiff's position on this motion is:

☐

Consents

☐

Does not oppose

☐

Opposes

☐

Unknown

WHEREFORE, Defendant John Doe respectfully requests that this Honorable Court grant this Motion for Continuance and reschedule the hearing in this matter to a later date, and for such other and further relief as this Court deems just and proper.

Respectfully submitted this ____ day of _____, 20____.

Name:

John Doe

Address:

3125 E Washington Street, Indianapolis, IN, 46201

Phone:

(317) 555-0145

Email:

john.doe.in@example.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Motion for Continuance was delivered to Circle City Rentals, LLC at 1 N Meridian Street, Indianapolis, IN 46204 on this ____ day of _____, 20____. Served by:

☐

Hand Delivery

☐

U.S. Mail

☐

Email